

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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LINDA ARVELO,

Plaintiff.

-against-

COMPLAINT
AND DEMAND FOR
JURY TRIAL

THE CITY OF NEW YORK, P.O. MICHAEL RICKETTS
and POLICE OFFICERS "JOHN and JANE DOE"
#1-8 (said names being fictitious, as the true names
are presently unknown), Individually and in
their Official Capacities.

11 CV 6229 (RWS) (GWG)

Defendants.

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Plaintiff, LINDA ARVELO, by and through her attorney, **ARNOLD J. LEVINE, ESQ.**,
complaining of the defendants herein, respectfully shows the Court and alleges:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1981, 1983, and 1988, for the wrongful acts of Defendants THE CITY OF NEW YORK, P.O. MICHAEL RICKETTS, and POLICE OFFICERS "JOHN and JANE DOE" #1-8 (said names being fictitious, as the true names are presently unknown), as Officers of the New York City Police Department, acting under color of state law and pursuant to their authority, in violation of Plaintiff's rights secured by the Civil Rights Act of 1871, 42 U.S.C. §§ 1981, 1983, 1988 and by the United States Constitution, including its First, Fourth, Fifth, Eighth, and Fourteenth Amendments.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1981, 1983, and 1988, and the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is invoked herein pursuant to the aforementioned statutory and constitutional provisions and pursuant to 28 U.S.C. §§ 1331, 1343, this being an action seeking redress for the violation of the plaintiff's constitutional and civil rights.

VENUE

4. Venue is properly laid in the this District under 28 U.S.C. § 1391(b), this being the District in which the claim arose.

TRIAL BY JURY

5. Plaintiff demands a trial by jury on each and every one of her claims as pled herein pursuant to Fed., R. Civ. P.38(b).

PARTIES

6 At all times relevant hereto Plaintiff was and is a resident of New York County in the State of New York, in the Southern District of New York.

7. At all times relevant hereto defendant THE CITY OF NEW YORK (hereinafter, "NYC") was and is a municipality of the State of New York and owns, operates, manages, directs, and controls the New York City Police Department, which employs the other named Defendants.

8. At all times relevant to this action, Defendants P.O. MICHAEL RICKETTS and POLICE OFFICERS “JOHN and JANE DOE” #1-8 (said names being fictitious, as the true names are presently unknown) are and were police officers employed by the New York City Police Department (hereinafter, “NYPD”), and acting under color of state law. They are being sued in both their individual and official capacities.

10. At all times relevant hereto and in all their actions described herein, the Defendants P.O. MICHAEL RICKETTS and POLICE OFFICERS “JOHN and JANE DOE” #1-8 (said names being fictitious, as the true names are presently unknown) were acting under color of statutes, ordinances, regulations, policies, customs, and usages of the NYPD and NYC, pursuant to their authority as employees, servants, and agents of the NYPD within the scope of employment and incidental to their otherwise lawful duties and functions as employees, servants, agents, and police officers.

11. NYC was responsible for the hiring, training, supervision, discipline, retention, and promotion of the police officers, sergeants, and/or employees of the NYPD.

FACTS

12. On or about December 11, 2010, at approximately 2:35 a.m., Plaintiff LINDA ARVELO was asleep in her bedroom inside 60 East 102nd Street, Apartment 1A, New York, New York.

13. At Approximately 2:35 a.m. on December 11, 2010, Plaintiff was awakened by a knock on her bedroom door.

14. Plaintiff put on her robe and walked out of her bedroom and saw 5-7 uniformed police officers inside her apartment and one uniformed police officer immediately outside her apartment door.

15. Plaintiff saw that her son, Luis, was sitting on the floor under a table and holding the leg of the table.

16. Plaintiff also saw her other son, Jesus, sitting on the floor in a corner of the apartment while crying.

17. When Plaintiff began to inquire why the Defendant Police Officers were in her apartment and expressed concern for her sons, a relatively large male police officer approached Plaintiff from her left and threw Plaintiff to the floor, causing Plaintiff's head to hit the floor.

18. Plaintiff was shocked and embarrassed, got back on her feet, and went back to her bedroom, where Plaintiff's friend was still in bed.

19. The same, relatively large police officer entered Plaintiff's bedroom, grabbed Plaintiff by her right arm, and forcibly pulled Plaintiff out of her bedroom.

20. Once pulled out of the bedroom, Plaintiff saw her son Luis at the front door with his hands behind his back, apparently handcuffed.

21. The front door to Plaintiff's apartment remained wide open.

22. Plaintiff asked why Luis was being arrested, at which point a Latino officer told Plaintiff only that something had allegedly occurred outside, without being specific.

23. Plaintiff was then handcuffed behind her back while still wearing only a robe, under which Plaintiff was wearing only underwear and a bra.

24. Plaintiff was not wearing shoes or any other footwear.

25. Defendant Police Officers refused to allow Plaintiff to put on clothing before being taken out of her apartment.

26. When the large Police Officer arrived at the front door to the building with Plaintiff, he handed her off to other Defendant Police Officers, "John and Jane Doe."

27. At the front door to the building, one of the Defendant Police Officers finally closed Plaintiff's robe.

28. Plaintiff was then placed in a police car and removed to the 23rd Precinct.

29. At the 23rd Precinct, Defendant Police Officers placed Plaintiff inside a small room with her daughter, sister, and daughter's friend, all of whom had been in Plaintiff's apartment when the Defendant Police Officers entered.

30. After Plaintiff was in the room for about one hour, Defendant Police Officers took Plaintiff to Metropolitan Hospital because she was experiencing anxiety.

31. Plaintiff received medication at Metropolitan Hospital.

32. Defendant Police Officers then took Plaintiff back to the 23rd Precinct, but the rest of the people who were arrested in her apartment were not there any more.

33. Plaintiff was placed in a cell by herself.

34. Defendant Police Officers then took Plaintiff to a one precinct, where they were told that they could not accept Plaintiff, before taking her to the 20th Precinct.

35. Plaintiff was eventually taken to court and placed on the bench in the arraignment part, where she was arraigned before the criminal court judge during the morning of December 12, 2010, on the sole charge of Resisting Arrest.

36. Plaintiff was released on her own recognizance and told to return to court on January 3, 2011.

37. By the time Plaintiff was released from custody, she had spent more than thirty-three hours in custody.

38. Plaintiff was required to make three court appearances following her arraignment.

39. On April 13, 2011, the sole charge was dismissed and the docket was sealed.

40. As a result of the excessive force by the large male Defendant Police Officer, Plaintiff suffered bruises on both of her arms and pain in her left leg.

41. Plaintiff continues to experience emotional and psychological harm, including, but not limited to, nightmares about the circumstances surrounding her arrest and constant fear of the police coming back to her apartment.

42. As a result of the actions of Defendant Police Officers, Plaintiff has asked her building manager to transfer her.

43. The Defendant Police Officers had no arrest warrant for Plaintiff or any other occupant of the apartment, no search warrant for the apartment or any part thereof, and no consent authorizing their entry into Plaintiff's apartment at 2:30 a.m. on December 11, 2010.

44. Plaintiff had not committed, was not committing, and was not about to commit, a crime when she was arrested in her apartment on December 11, 2010.

45. Plaintiff never resisted arrest or otherwise obstructed the officers in any way inside her apartment on December 11, 2010.

46. The Defendant Police Officers did not have probable cause to believe that Plaintiff had committed, was committing, or was about to commit a crime when they arrested her on December 11, 2010.

**FIRST CLAIM FOR RELIEF:
DEPRIVATION OF FEDERAL CIVIL RIGHTS**

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 46 with the same force and effect as if fully set forth herein.

48. All of the aforementioned acts of Defendants, their agents, servants, and employees were carried out under color of state law.

49. All of the aforementioned acts deprived Plaintiff LINDA ARVELO of the rights, privileges, and immunities guaranteed citizens of the United States by the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States and in violation of 42 U.S.C. § 1983.

50. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

51. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

52. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

53. By these actions, these Defendants have deprived Plaintiff of rights secured by the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983, for which the Defendants are individually liable.

**SECOND CLAIM FOR RELIEF:
CONSPIRACY TO VIOLATE CIVIL RIGHTS**

54. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 53 with the same force and effect as if fully set forth herein.

55. All of the aforementioned Defendants conspired to violate Plaintiff's civil rights by agreeing among themselves to enter Plaintiff's home without a warrant or consent, agreeing to arrest Plaintiff even though she had committed no crime, and agreeing not to prevent each other from violating Plaintiff's civil rights, as described above, in violation of 42 U.S.C. § 1985, for which the Defendants are individually liable.

56. All of the aforementioned Defendants conspired to violate Plaintiff's civil rights by agreeing among themselves to falsely charge Plaintiff with crimes and testify falsely, as described above, in violation of 42 U.S.C. § 1985, for which the Defendants are individually liable.

**THIRD CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

57. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 56 with the same force and effect as if fully set forth herein.

58. The degree of force used by Defendants was excessive, unreasonable, and unwarranted.

59. Defendants' actions were intentional, willful, malicious, egregious, grossly reckless and negligent, unconscionable, and unprovoked.

60. As a result of the excessive force and brutality, Plaintiff sustained substantial pain and bruising about her arms and legs, as well as emotional and psychological harm.

**FOURTH CLAIM FOR RELIEF:
MUNICIPAL LIABILITY**

61. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 60 with the same force and effect as if fully set forth herein.

62. Defendant POLICE OFFICERS MICHAEL RICKETTS AND “JOHN and JANE DOE” #1-8 (said names being fictitious, as the true names are presently unknown) used excessive and unreasonable force during the stop, search, and arrest of Plaintiff despite a lack of force or resistance by Plaintiff, notwithstanding their knowledge that said force would jeopardize Plaintiff’s liberty, well-being, safety, and constitutional rights.

63. Defendant POLICE OFFICERS MICHAEL RICKETTS and “JOHN and JANE DOE” #1-8 (said names being fictitious, as the true names are presently unknown) failed to protect Plaintiff from the violation of her civil and constitutional rights by each other Defendant’s use of excessive and unreasonable force against Plaintiff and from her false arrest and unlawful imprisonment.

64. The acts complained of were carried out by the aforementioned Defendants in their capacities as police officers and officials, with the entire actual and/or apparent authority attendant thereto.

65. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

66. The aforementioned customs, policies, usages, practices, procedures, and rules of NYC and the NYPD included, but were not limited to, initiating and continuing criminal

proceedings without evidence of criminal activity, entering homes without legal authorization or consent, failing to discipline officers who violate the rights of arrestees.

67. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD constituted deliberate indifference to the safety, well-being, and constitutional rights of Plaintiff LINDA ARVELO.

68. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD were the proximate cause of the constitutional violations suffered by Plaintiff LINDA ARVELO as alleged herein.

69. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD were the moving force behind the constitutional violations suffered by Plaintiff LINDA ARVELO as alleged herein.

70. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff LINDA ARVELO.

71. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers and were directly responsible for the violation of Plaintiff's constitutional rights.

72. Defendant NYC, as municipal policymaker in the training and supervision of Defendant police officers, has pursued a policy and custom of deliberate indifference to the rights of persons in their domain who suffer violations of their freedom from the excessive use of force and unreasonable force and freedom from deprivation of Liberty without Due process of law in violation of the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the

Constitution of the United States and 42 U.S.C. § 1983, and the Constitution and laws of the State of New York.

73. All of the foregoing acts by Defendants deprived Plaintiff LINDA ARVELO of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from unreasonable search and seizure under the Fourth and Fourteenth Amendments to the United States Constitution.
- c. To be protected against violations of his civil and constitutional rights, including, but not limited to, his rights under the First, Fourth, Fifth, and Eighth Amendments to the United States Constitution.
- d. To be free from infliction of emotional distress;
- e. To be free from the use of excessive and unreasonable force;
- f. Not to have cruel and unusual punishment imposed upon her;
- g. To receive equal protection under the law; and
- h. Not to be deprived of substantive due process of law.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment and prays for the following relief, jointly and severally, against the Defendants:

1. Special and compensatory damages in the amount of ONE HUNDRED THOUSAND (\$100,000.00) DOLLARS; and
2. Punitive damages in the amount of ONE HUNDRED THOUSAND (\$100,000.00) DOLLARS; and

3. Reasonable attorney's fees and costs; and
4. Such other and further relief as this Court deems just and proper.

DATED: New York, New York
AUGUST 29, 2011

Respectfully submitted,

/S/ ARNOLD J. LEVINE
Arnold J. Levine (AL6819)

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